

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, September 14, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
22-CIV-00930	701 EL CAMINO ASSOCIATES, LLC VS. E.A. DAVIDOVITS & CO., INC.
LINE 1	
701 EL CAMINO ASSOCIATES, LLC	JOHN HAUSHALTER
E.A. DAVIDOVITZ & CO., INC.	ALEXANDER R. MOORE

DEFENDANT/CROSS COMPLAINANT: E.A. DAVIDOVITS & CO. INC.'S MOTION TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATORIES, SET ONE

TENTATIVE RULING:

Plaintiff 701 El Camino Associates and Defendant E.A. Davidovits & Co. are ORDERED to APPEAR regardless of whether they are contesting the tentative to update the Court on the status of the interrogatories at issue. Further counsel for Defendant E.A. Davidovits & Co. is ORDERED to contact counsel for Plaintiff 701 El Camino Associates on September 12, 2026 by email and telephone to alert Plaintiff's counsel about the hearing and the need to appear. Nevertheless Defendant E.A. Davidovitz & Co.'s Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One, is DENIED WITHOUT PREJUDICE.

This nine month old motion in a nearly five year old construction-related case was filed because Plaintiff apparently didn't respond to form interrogatories issued over a year ago.

The date of the hearing was changed upon the filing of the motion by the clerk's office from January 26, 2026 to September 14, 2026. (See Dec. 19, 2025 Notice of Motion & Motion, p. 1.) No amended Notice of Motion or proof of service of notice of the changed hearing date has been filed, no Opposition has been filed and there is no indication that Plaintiff 701 El Camino Associates, LLC was validly served proper notice of the hearing.

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied without prejudice to a renewed motion properly noticed and served.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for E.A. Davidovitz & Co. shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-00494
LINE 2

NORTHERN CALIFORNIA COLLECTION SERVICE, INC. VS. AMPEX ENGINEERING &
CONSTRUCTION INC.,

NORTHERN CALIFORNIA COLLECTION SERVICE, INC.
AMPEX ENGINEERING & CONSTRUCTION INC,

ANDRE J. LELIEVRE
LAWRENCE A. JACOBSON

PLAINTIFF: NORTHERN CALIFORNIA COLLECTION SERVICE, INC.'S MOTION FOR AN ORDER COMPELLING
DEFENDANT TO SERVE INITIAL RESPONSES TO SPECIAL INTERROGATORIES, SET THREE, AND TO IMPOSE
MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Northern California Collection Service, Inc.'s Motion for an Order Compelling Defendant
Ampex Engineering & Construction, Inc. to Serve Initial Responses to Special Interrogatories, Set Three,
and to Impose Monetary Sanctions is DENIED.

Defendant Ampex Engineering & Construction, Inc.'s Request for Judicial Notice is GRANTED but not
to the truth of any matter asserted therein.

A party is required to serve responses to interrogatories within thirty days of service. (Code of Civ. Proc.,
§ 2030.260, subd. (a).) A party who fails to serve a timely response to an interrogatory waives any
objection, and the propounding party is then entitled to move for an order compelling a response. (*Id.*, at
§ 2030.290, subds. (a)–(b).)

Plaintiff Northern California Collection Service, Inc. (“NCCS”) served Defendant Ampex Engineering
and Construction, Inc. (“Ampex”) with a third set of special interrogatories on October 14, 2025. (Dec.
16, 2025 Compendium of Exhibits, p. 119.) As of December 16, 2025, no responses to the set of
interrogatories had been served. (*Id.*, at p. 5, ¶ 7.) NCCS thus filed the instant motion to compel responses
and impose monetary sanctions for the failure to respond.

Due to a mistaken assumption that NCCS had tacitly agreed to stay discovery while the parties mediated
the case, Ampex’s counsel did not calendar the deadline to respond—resulting in Ampex’s failure to
serve timely responses. (Aug. 25, 2026 Declaration of Lawrence A. Jacobson, ¶¶ 5–9.) After receiving
notice of the motion, Ampex served verified responses without objections to each interrogatory in the set
on January 9, 2026. (*Id.*, at ¶ 19; Aug. 25, 2026 Compendium of Exhibits, pp. 36–53.)

Despite having received the responses and failing to raise any issue with the responses’ substance, NCCS
nonetheless persists in seeking an order compelling Ampex’s responses. (See Sep. 2, 2026 Memorandum
of Points & Authorities, p. 1, ll. 22–24.) While NCCS is correct that a trial court has *authority* to order
further responses when untimely responses are served while a motion to compel is pending (see *Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408), such an
order would be entirely moot here. Accordingly, the request for an order compelling responses is denied.

Furthermore, while the imposition of sanctions against “any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel a response to interrogatories” is otherwise
mandatory, the present “circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §

2030.290, subd. (c); see also *id.*, at § 2023.030 subd. (a).) NCCS has unsuccessfully moved for an order compelling response, but the motion was prompted by Ampex's misuse of discovery by failing to serve timely responses. (See *id.*, at § 2023.010, subd. (d).) Accordingly, both parties' requests for mandatory and discretionary monetary sanctions are denied.

NCCS's attorney of record is advised he has sworn an oath to conduct himself with courtesy at all times. (Cal. Rules of Court, rules 9.7(a)–(b).) Such courtesy includes an attempt to resolve simple and obvious disputes informally before resorting to motion practice and wasting judicial resources. (See State Bar of California Attorney Guidelines of Civility and Professionalism, § 10.) A simple phone call or email here could have prevented all the time and expense the parties, their attorneys, and the Court have now incurred. The fact that the Civil Discovery Act does not require a motion to compel initial responses to be accompanied by a meet and confer declaration does not alter this conclusion; courtesy in many circumstances requires more than compliance with statutory law. If there is further refusal to abide by the normative guidelines of the State Bar and other sources of valuable advice on how an attorney should strive to conduct himself or herself, the Court is inclined to enforce such compliance.

NCCS and its counsel are also reminded they are statutorily obligated to accept electronic service. (See Code Civ. Proc., § 1010.6, subd. (b)(2).) NCCS admits that it is indeed NCCS's software that is causing the rejection of Ampex's attempts at electronic service. (Sep. 2, 2026 Memorandum of Points & Authorities, p. 2, ll. 8–9.) If NCCS is unwilling to take steps to permit electronic service as required from Ampex's electronic service address of record, the Court is inclined to relieve Ampex of the obligation to serve papers electronically and ensure any additional cost or inconvenience therefrom is borne by NCCS.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-00494
LINE 3

NORTHERN CALIFORNIA COLLECTION SERVICE, INC. VS. AMPEX ENGINEERING &
CONSTRUCTION INC,

NORTHERN CALIFORNIA COLLECTION SERVICE, INC.
AMPEX ENGINEERING & CONSTRUCTION INC,

ANDRE J. LELIEVRE
LAWRENCE A. JACOBSON

PLAINTIFF: NORTHERN CALIFORNIA COLLECTION SERVICE, INC.'S MOTION FOR AN ORDER COMPELLING
DEFENDANT TO SERVE INITIAL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET FOUR), AND TO
IMPOSE MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Northern California Collection Service, Inc.'s Motion for an Order Compelling Defendant
Ampex Engineering & Construction, Inc. to Serve Initial Responses to Requests for Production (Set
Four) and to Impose Monetary Sanctions is DENIED.

Defendant Ampex Engineering & Construction, Inc.'s Request for Judicial Notice is GRANTED but not
to the truth of any matter asserted therein.

A party is required to serve responses to requests for production within thirty days of service. (Code of
Civ. Proc., § 2031.260, subd. (a).) A party who fails to serve a timely response to a request waives any
objection, and the propounding party is then entitled to move for an order compelling a response. (*Id.*, at
§ 2031.300, subds. (a)–(b).)

NCCS served Ampex with a fourth set of requests for production on October 30, 2025. (Dec. 16, 2025
Compendium of Exhibits, p. 119 [all citations to filed papers are to those filed in support of or in
opposition of the present motion].) As of December 16, 2025, no responses to the set of requests had been
served. (*Id.*, at p. 5, ¶ 7.) NCCS thus filed the instant motion to compel responses and impose monetary
sanctions for the failure to respond.

Due to a mistaken assumption that NCCS tacitly agreed to stay discovery while the parties mediated the
case, Ampex's counsel did not calendar the deadline to respond—resulting in Ampex's failure to serve
timely responses. (Aug. 25, 2026 Declaration of Lawrence A. Jacobson, ¶¶ 5–9.) After receiving notice of
the motion, Ampex served verified responses without objections to each request in the set on December
17, 2025. (*Id.*, at ¶ 18; Aug. 25, 2026 Compendium of Exhibits, pp. 21–53.)

Despite having received the responses and failing to raise any issue with the responses' substance, NCCS
nonetheless persists in seeking an order compelling Ampex's responses. (See Sep. 2, 2026 Memorandum
of Points & Authorities, p. 1, ll. 22–24.) While NCCS is correct that a trial court has *authority* to order
further responses when untimely responses are served while a motion to compel is pending (see *Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408), such an
order would be entirely moot here. Accordingly, the request for an order compelling responses is denied.

Furthermore, while the imposition of sanctions against “any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel a response to interrogatories” is otherwise
mandatory, the present “circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §

2031.300, subd. (c); see also *id.*, at § 2023.030 subd. (a).) NCCS has unsuccessfully moved for an order compelling response, but the motion was prompted by Ampex's misuse of discovery by failing to serve timely responses. (See *id.*, at § 2023.010, subd. (d).) Accordingly, both parties' requests for mandatory and discretionary monetary sanctions are denied.

NCCS's attorney of record is advised he has sworn an oath to conduct himself with courtesy at all times. (Cal. Rules of Court, rules 9.7(a)–(b).) Such courtesy includes an attempt to resolve simple and obvious disputes informally before resorting to motion practice and wasting judicial resources. (See State Bar of California Attorney Guidelines of Civility and Professionalism, § 10.) A simple phone call or email here could have prevented all the time and expense the parties, their attorneys, and the Court have now incurred. The fact that the Civil Discovery Act does not require a motion to compel initial responses to be accompanied by a meet and confer declaration does not alter this conclusion; courtesy in many circumstances requires more than compliance with statutory law. If there is further refusal to abide by the normative guidelines of the State Bar and other sources of valuable advice on how an attorney should strive to conduct himself or herself, the Court is inclined to enforce such compliance.

NCCS and its counsel are also reminded they are statutorily obligated to accept electronic service. (See Code Civ. Proc., § 1010.6, subd. (b)(2).) NCCS admits that it is indeed NCCS's software that is causing the rejection of Ampex's attempts at electronic service. (Sep. 2, 2026 Memorandum of Points & Authorities, p. 2, ll. 8–9.) If NCCS is unwilling to take steps to permit electronic service as required from Ampex's electronic service address of record, the Court is inclined to relieve Ampex of the obligation to serve papers electronically and ensure any additional cost or inconvenience therefrom is borne by NCCS.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-04607 SEAL ROCK, INC., ET AL. VS. RICHARD TRAVERSO, ET AL.

LINE 4

SEAL ROCK, INC.
RICHARD TRAVERSO

SOBY M. MATHEWS
DANIEL S. MASON

PLAINTIFF: SEAL ROCK, INC.'S MOTION TO COMPEL ATTENDANCE AT DEPOSITION AND FOR MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiffs' motion to compel the deposition of Defendant Richard Traverso is GRANTED as to compelling the appearance and testimony of Defendant and DENIED as to compelling the production of documents demanded in the deposition notice.

Plaintiffs' request for sanctions is GRANTED, in part, as to sanctions against Defendant Traverso and DENIED as to Defendant's counsel.

On January 27, 2026, Plaintiffs served a deposition notice on Defendant by email. The deposition notice called for Defendant to appear to testify and to produce documents at the deposition to be held on March 27, 2026. According to defense counsel, Plaintiffs were already aware at the time that defense counsel had lost contact with his client (as of December 2025).

On January 30, 2026, Defendants' counsel, Daniel Mason, filed a motion to be relieved as Defendants' counsel. (*See* Motion to Be Relieved as Counsel, filed Jan. 30, 2026.) Mr. Mason stated in his accompanying declaration that Defendant Traverso had not responded to his numerous phone calls, voicemails, text messages, and emails, and that he last heard from Defendant Traverso in approximately June of 2025. (Decl. in Supp. of Mot. to be Relieved as Counsel, § 2.) The hearing on the motion to be relieved as counsel is set for November 2, 2026 and defense counsel has not sought to advance it.

Defense counsel informed Plaintiffs' counsel that he had no reason to believe that the Defendant would appear at his deposition. Defendant did not appear for the deposition

If a party fails to appear for examination and produce documents as demanded in a duly served notice of deposition, the propounding party "may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document." (Code Civ. Proc., § 2025.450, subd. (a).)

The motion to compel "shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (*Id.*, subd. (b).)

If the motion is granted, "the court shall impose a monetary sanction" in favor of the propounding party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (*Id.*, subd. (g).)

Motion to Compel

Defendant failed to appear for his noticed deposition. Defendant does not dispute the nonappearance or challenge the validity of the deposition notice served by Plaintiffs.

Accordingly, Plaintiff's motion to compel is GRANTED as to compelling Defendant's attendance and testimony at his deposition. He is ORDERED to appear for deposition on a reasonably agreeable date within 30 days of service of the Order (and in any event prior to November 2, 2026). Defense counsel shall make all available reasonable efforts to notify Defendant of the requirement that he appear for deposition, of the date selected for deposition, of the requirement to pay the sanction (described below) and that failure to comply will result in further sanctions that could include terminating sanctions, *i.e.*, the striking of his answer and cross-complaint and entry of default.

However, the statute requires that a motion to compel the production of documents demanded in a deposition notice "shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Id., subd. (b).)

Here, Plaintiffs' papers in support of this motion fail to address the issue of good cause or otherwise provide facts and/or arguments justifying the production of the requested documents.

Accordingly, Plaintiff's motion to compel is DENIED as to compelling the production of documents demanded in the deposition notice.

Sanctions

When a motion to compel is granted, "the court shall impose a monetary sanction" in favor of the propounding party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Id., subd. (g).)

Defendant's failure to appear warrants sanctions. However, the Court finds that the circumstances here make the imposition of sanctions on Defense counsel unjust. On January 30, three days after service of the deposition notice, Defense counsel filed a motion to be relieved as counsel, with an accompanying declaration stating that Defendant had failed to return numerous phone calls, voicemails, text messages, and emails over the previous five months, and that he last heard from Defendant around June of 2025. (Decl. in Supp. of Mot. to be Relieved as Counsel, § 2.) Emails provided by Plaintiffs show Defense counsel made similar representations to Plaintiff prior to the deposition date and stated he could not confirm that Defendant would appear. (*See, e.g.*, Mathews Decl., Ex. D.) The Court declines to impose sanctions against Defense Counsel under these circumstances.

Plaintiffs request \$5,457.00 in sanctions-\$4,902.00 in attorney's fees (for 12.9 hours of work at \$380 per hour), and costs of \$495.00 for the court reporter at the deposition and a \$60 filing fee. This request is excessive in relation to the amount of work that could have been performed and achieved the same result, especially in context. The Court reduces the amount of the sanction as follows: the court finds that 1 hour for appearance at the deposition, .5 hours to meet and confer, 3.5 hours for preparation of the motion and 1.5 hours to review the opposition and draft a reply is appropriate. Plaintiffs provide no support for the billing rate but it appears from his bar number that counsel is an experienced attorney and \$380 an hour is likely reasonable. Accordingly, the Court awards attorneys' fees in an amount of \$2470, plus

costs in the amount of \$555 for a total sanction of \$3025 as against Richard Traverso, which must be paid within 30 days of service of the Order.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 5

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
PRO PER

MOTION FOR ORDER RE: ADMISSIONS

(continued from 8/10/26)

TENTATIVE RULING:

For the reasons stated below, Plaintiff's "MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS' RX SOLAR INC. A CALIFORNIA CORPORATION, AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560," filed Jan. 15, 2026, is GRANTED-in-part and DENIED-in-part (as to the amount of sanction only).

In Sept. 2025, Plaintiff served Requests for Admission (Set One) ("RFAs") on both defendants, Alan Lim and Rx Solar, Inc. Defendants' responses to the RFAs were due in Oct. 2025. Defendants have never responded to the RFAs.

On Jan. 15, 2026, several months after the RFA responses were due, Plaintiff filed and served the present motion, entitled: "MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS' RX SOLAR INC. A CALIFORNIA CORPORATION, AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560." Due to the court's congested hearing calendar, the hearing for this motion was not scheduled to take place until Aug. 10, 2026.

On Aug. 3, 2026, Plaintiff's counsel Ira Leshin filed a supplemental declaration supporting this motion, attaching the subject RFAs, which had been inadvertently omitted from Mr. Leshin's prior, Jan. 15, 2026 declaration.

At the Aug. 10, 2026 hearing, the Court issued a Minute Order stating that the Court will consider Mr. Leshin's Aug. 3, 2026 supplemental declaration, but would continue the hearing to Sept. 14, 2026, to allow defendants additional time to consider the supplemental declaration.

Despite Plaintiff having served the subject RFAs in Sept. 2025 (a year ago), and despite Plaintiff having filed this motion to deem the RFAs admitted roughly nine months ago, and despite having many months to serve responses to the RFAs, even after Plaintiff filed this motion, to date, Defendants still have never responded to Plaintiff's RFAs (Set One).

In light of the foregoing, the motion to deem the RFAs admitted is granted. (Code Civ. Proc. § 2033.280(b), (c).)

Plaintiff's request for monetary sanctions is GRANTED-in-part, in the amount of \$1,060, jointly and severally, against defendants Alan Lim and Rx Solar, Inc. (Code Civ. Proc. § 2033.280(c).) To the extent the motion seeks sanctions against defendants' prior counsel, who has since withdrawn from the case,

that request is denied. The motion seeks a larger dollar amount of sanctions, which the Court finds to be unwarranted. This was a simple, unopposed motion. The Court credits Plaintiff's counsel for two hours of attorney time (at \$500/hr., see Jan. 15, 2026 Ira Leshin decl.), plus the \$60 filing fee, for a total sanctions award of \$1,060, which defendants shall pay to Plaintiff within 30 days of being served with notice of entry of this order.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-07314 KENOVER MARKETING CORP., VS. MEDITERRANEAN DEPOT LLC

LINE 6

KENOVER MARKETING CORP.,
MEDITERRANEAN DEPOT LLC

STEVEN A. BOOSKA

PLAINTIFF: KENOVER MARKETING CORP.'S MOTION TO VACATE DEFAULT JUDGMENT [CCP 473(a) & 187]

TENTATIVE RULING:

APPEAR and explain (1) whether Plaintiff is also seeking to vacate the default entered on March 4, 2026 (in addition to the March 23, 2026 judgment); and (2) whether Plaintiff is seeking leave to file an amended complaint or believes it can file the amendment as of right. If the former, it should lodge with the Court a copy of the proposed Amendment in advance of the hearing.

**UD LAW AND MOTION CALENDAR
MONDAY, SEPTEMBER 14, 2026**

02:00 PM

26-UDL-00587 THE JOHN STEWART COMPANY VS. LINDA CHRISTINA LUCERO MENDIETA

LINE 7

THE JOHN STEWART COMPANY
LINDA CHRISTINA LUCERO MENDIETA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: THE JOHN STEWART COMPANY'S MOTION FOR TERMINATING SANCTIONS AGAINST DEFENDANT
LINDA CHRISTINA LUCERO MENDIETA

TENTATIVE RULING:

Plaintiff The John Stewart Company's Motion for Terminating Sanctions Against Defendant is
GRANTED pursuant to Code Civ. Proc. §§ 2030.290, 2023.010 and 2023.030, as follows:

Plaintiff's Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code section 452
subd. (d).

Termination sanctions are authorized for failure to obey orders compelling discovery responses. (Code Civ. Proc. sections 2030.290, 2023.010 and 2023.030.) Terminating sanctions are to be used sparingly because of their drastic effect. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Sanctions should be tailored to the harm caused by the misuse of the discovery process and should not exceed what is required to protect the party harmed by that misuse, and should be imposed in an incremental approach with terminating sanctions being the last resort. (*Id.* at 191.)

Here, the Court signed a formal order on July 29, 2026, which was filed and served by mail on July 30, 2026, which stated in relevant part:

...Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS's first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting Mercedes Gavin declaration, is hereby deemed admitted by Defendant.

...Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

(RJN Exh.'s 4, 5.)

Defendant's responses were due August 10, 2026, and had not been received by August 20, 2026. (Gavin Decl., ¶¶3-4.) Monetary sanctions also had not been paid as of that date, though they were not due at the time the motion was filed (although would be late now). (*Id.*) The Order compelling discovery responses and ordering payment of monetary sanctions was insufficient to protect Plaintiff from the harm caused by Defendant's misuse of the discovery process because Defendant still has not responded. Additionally, Defendant did not oppose the motion to compel, has not opposed the motion for terminating sanctions, and has not provided any justification for failing to comply with the Court's order. Terminating sanctions are therefore appropriate.

The Motion is accordingly GRANTED, Defendant's Answer is ordered stricken as a terminating sanction, the court directs that default be entered and judgment will be issued in favor of Plaintiff and against Defendant. The hearing on Defendant's Motion for Summary Judgment calendared for September 21, 2026 is vacated as moot.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-UDL-00598 THE JOHN STEWART COMPANY VS. ELIANA MEDINA

LINE 8

THE JOHN STEWART COMPANY
LINDA CHRISTINA LUCERO MENDIETA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: THE JOHN STEWART COMPANY'S MOTION FOR TERMINATING SANCTIONS AGAINST DEFENDANT ELIANA MEDINA

TENTATIVE RULING:

Plaintiff The John Stewart Company's Motion for Terminating Sanctions Against Defendant is GRANTED pursuant to Code Civ. Proc. §§ 2030.290, 2023.010 and 2023.030, as follows:

Plaintiff's Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code section 452 subd. (d).

Termination sanctions are authorized for failure to obey orders compelling discovery responses. (Code Civ. Proc. sections 2030.290, 2023.010 and 2023.030.) Terminating sanctions are to be used sparingly because of their drastic effect. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Sanctions should be tailored to the harm caused by the misuse of the discovery process and should not exceed what is required to protect the party harmed by that misuse, and should be imposed in an incremental approach with terminating sanctions being the last resort. (*Id.* at 191.)

Here, the Court signed a formal order on July 22, 2026, which was filed and served by mail on July 23, 2026, which stated in relevant part:

...Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS's first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting Mercedes Gavin declaration, is hereby deemed admitted by Defendant.

...Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

(RJN Exh.'s 4, 5.)

Defendant's responses were due August 3, 2026, and had not been received by August 6, 2026. (Gavin Decl., ¶¶3-4.) Monetary sanctions also had not been paid as of that date, though they were not due under the terms of the Order at the time this motion was filed (although would be late now). (*Id.*) The Order

compelling discovery responses and ordering payment of monetary sanctions was insufficient to protect Plaintiff from the harm caused by Defendant's misuse of the discovery process because Defendant still has not responded. Additionally, Defendant did not oppose the motion to compel, has not opposed the motion for terminating sanctions, and has not provided any justification for failing to comply with the Court's order. Terminating sanctions are therefore appropriate.

The Motion is accordingly GRANTED, Defendant's Answer is ordered stricken as a terminating sanction, the court directs that default be entered and judgment will be issued in favor of Plaintiff and against Defendant. The hearing on Defendant's Motion for Summary Judgment calendared for September 21, 2026 is vacated as moot.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

POSTED: 3:00 PM